

ORDINANCE NO. A 29

TOWN OF DECATUR, MISSISSIPPI

**AN ORDINANCE PROHIBITING THE INTENTIONAL
DISCHARGE OF FIREARMS WITHIN THE CORPORATE
LIMITS OF THE TOWN OF DECATUR**

WHEREAS, it appears unto the Mayor and Board of Aldermen of the Town of Decatur, Newton County, Mississippi that the discharge of firearms within the corporate limits of the Town of Decatur poses a substantial risk of personal injury and property damage; and,

WHEREAS, Mayor and Board of Aldermen finds that it is in the best interest of said municipality that the intentional discharge of firearms within the municipality be prohibited;

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Board of Aldermen of the Town of Decatur, Mississippi as follows:

SECTION 1. It shall unlawful for any person to intentionally discharge a pistol, rifle, shotgun or any firearm of any type within the corporate limits of the Town of Decatur, Mississippi.

SECTION 2. Any person convicted of violating this ordinance shall be guilty of a misdemeanor and shall be fined a sum not exceeding Five Hundred Dollars (\$500.00) and be imprisoned in the municipal jail not exceeding six (6) months or by both.

SECTION 3. This ordinance shall be effective thirty days from the date of first publication thereof.

ADOPTED BY THE MAYOR AND BOARD OF ALDERMEN of the Town of Decatur, Mississippi on Tuesday, June 1, 1993.

There then came before the Mayor and Board of Aldermen the matter of prohibiting the discharge of firearms within the corporate limits of the Town of Decatur, Mississippi. Upon discussion, Alderman Mary Denham moved adoption of the following ordinance:

MISSISSIPPI LEGISLATURE

2009 Regular Session

To: Judiciary, Division B

By: Senator(s) Flowers, Blount, Burton, Carmichael, Clarke,
Fillingane, Lee (35th), Michel, Montgomery, Watson

Senate Bill 2036

(As Passed the Senate)

AN ACT TO AMEND SECTION 33-7-303, MISSISSIPPI CODE OF 1972, TO EXPLICITLY RESTRICT THE POWER TO CONFISCATE FIREARMS AND AMMUNITIONS IN AN EMERGENCY; TO PROVIDE EXCEPTIONS; TO ENACT DEFINITIONS; TO AMEND SECTIONS 45-9-53 AND 33-15-11, MISSISSIPPI CODE OF 1972, TO CONFORM; AND FOR RELATED PURPOSES.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MISSISSIPPI:

SECTION 1. Section 33-7-303, Mississippi Code of 1972, is amended as follows:

33-7-303. (1) The Governor, if he deems it necessary to preserve law and order, may by proclamation declare martial law to be in effect in any county or area in the state. Such proclamation shall be in writing, shall define the limits of such martial law, and specify the forces to be used, and the extent and degree to which martial law may be employed.

(2) (a) Nothing in this section or in any other statute shall be construed to confer upon the Governor or any official or employee of any department, agency or political subdivision of the state the power to:

(i) Confiscate a firearm from a person unless:

1. The person is unlawfully in possession of the firearm as provided in Title 97, Chapter 37; or

2. The firearm is confiscated by a peace officer who is acting in the lawful discharge of duty and under the reasonable belief that the confiscation is necessary for the protection of the peace officer, the person carrying the firearm, or a third party. The peace officer shall return the firearm to the

person before discharging the person unless the officer arrests that person for engaging in criminal activity or seizes the firearm as evidence pursuant to an investigation for the commission of a crime;
or

(ii) Impose additional restrictions as to the lawful possession, transfer, sale, carrying, storage, display or use of firearms, ammunition, or components of firearms or ammunition.

(b) For the purposes of this subsection:

(i) "Ammunition" means a cartridge, shell or other device containing explosive or incendiary material designed and intended for use in a firearm;

(ii) "Firearm" means any weapon which will or is designed to expel any projectile by the action of an explosive.

SECTION 2. Section 45-9-53, Mississippi Code of 1972, is amended as follows:

45-9-53. (1) This section and Section 45-9-51 do not affect the authority that a county or municipality may have under another law:

(a) To require citizens or public employees to be armed for personal or national defense; law enforcement, or another lawful purpose;

(b) To regulate the discharge of firearms within the limits of the county or municipality. A county or municipality may not apply a regulation relating to the discharge of firearms or other weapons in the extraterritorial jurisdiction of the county or municipality or in an area annexed by the county or municipality after September 1, 1981, if the firearm or other weapon is:

(i) A shotgun, air rifle or air pistol, BB gun or bow and arrow discharged:

1. On a tract of land of ten (10) acres or more and more than one hundred fifty (150) feet from a residence or occupied building located on another property; and

2. In a manner not reasonably expected to cause a projectile to cross the boundary of the tract; or

(ii) A center fire or rim fire rifle or pistol or a muzzle-loading rifle or pistol of any caliber discharged:

1. On a tract of land of fifty (50) acres or more and more than three hundred (300) feet from a residence or occupied building located on another property; and

2. In a manner not reasonably expected to cause a projectile to cross the boundary of the tract;

(c) To regulate the use of property or location of businesses for uses therein pursuant to fire code, zoning ordinances, or land-use regulations, so long as such codes, ordinances and regulations are not used to circumvent the intent of Section 45-9-51 or paragraph (e) of this section;

(d) To regulate the use of firearms in cases of insurrection, riots and natural disasters in which the city finds such regulation necessary to protect the health and safety of the public. However, the provisions of this section shall not apply to the lawful possession of firearms in the home, place of business or in transit to and from the home or place of business;

(e) To regulate the storage or transportation of explosives in order to protect the health and safety of the public, with the exception of black powder which is exempt up to twenty-five